

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 844

Introduced by Rountree, 3.

Read first time January 08, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Site and Building Development Fund; to
- 2 amend sections 81-12,146 and 81-12,147, Reissue Revised Statutes of
- 3 Nebraska; to provide for a grant for food distribution in certain
- 4 counties; to harmonize provisions; and to repeal the original
- 5 sections.
- 6 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 81-12,146, Reissue Revised Statutes of Nebraska,
2 is amended to read:

3 81-12,146 (1) The Site and Building Development Fund is created. The
4 fund shall receive money pursuant to section 76-903 and may include
5 revenue from transfers by the Legislature, grants, private contributions,
6 repayment of loans, and all other sources. The Department of Economic
7 Development, as part of its comprehensive business development strategy,
8 shall administer the fund. Transfers may be made from the fund to the
9 General Fund at the direction of the Legislature. Any money in the Site
10 and Building Development Fund available for investment shall be invested
11 by the state investment officer pursuant to the Nebraska Capital
12 Expansion Act and the Nebraska State Funds Investment Act.

13 (2) It is the intent of the Legislature to transfer five million
14 dollars from the General Fund to the Site and Building Development Fund
15 for fiscal year 2022-23 and five million dollars from the General Fund to
16 the Site and Building Development Fund for fiscal year 2023-24. Such
17 money shall be placed in a subaccount of the Site and Building
18 Development Fund and earmarked for use to fund large shovel-ready
19 commercial and industrial sites developed under the Municipal Inland Port
20 Authority Act.

21 (3)(a) It is the intent of the Legislature to appropriate five
22 hundred thousand dollars from the Site and Building Development Fund for
23 fiscal year 2024-25 to the department to enter into one or more contracts
24 to conduct a comprehensive study or studies to identify and evaluate
25 large commercial and industrial sites in Nebraska that have the potential
26 to attract major investment and employment opportunities. The study shall
27 include consideration of super sites that encompass between five hundred
28 and one thousand acres and mega sites that encompass more than one
29 thousand acres. At least one proposed site shall be located west of the
30 one hundredth meridian in Nebraska. The contracts shall be awarded based
31 on a competitive selection process as determined by the department. The

1 studies shall be completed no later than December 15, 2024.

2 (b) The study shall assess the potential geographic locations; the
3 infrastructure assets that would be required for each site, including
4 highway, rail, and air transportation, and utilities such as water,
5 wastewater treatment, electrical power, and natural gas; the population
6 within fifty miles of each site and whether such population would be
7 sufficient to provide an adequate workforce for such site; and the
8 appropriate level of state investment necessary to position Nebraska as a
9 nationally or globally competitive location for site selection targeting
10 various sectors, including, but not limited to, advanced manufacturing,
11 trade, bioscience, agribusiness, warehousing and supply chain logistics,
12 technology, aerospace, automotive, clean energy, military support, and
13 life sciences. Such identified state investment levels may include, but
14 are not limited to, land acquisition costs and infrastructure
15 investments. The purpose of the study is to provide strategic insights
16 that will enable the state to attract major investment and employment
17 opportunities in order to support the growth of transformational
18 industries within Nebraska.

19 (c) The Director of Economic Development shall appoint an advisory
20 committee comprised of representatives of Nebraska economic development
21 organizations, equally representing each of Nebraska's three
22 congressional districts, to assist the department in identifying the
23 location of potential and preferred super sites and mega sites.

24 (4) It is the intent of the Legislature to appropriate one hundred
25 thousand dollars from the Site and Building Development Fund to the
26 Department of Economic Development for fiscal year 2026-27 for the
27 purpose of awarding a grant under subdivision (1)(m) of section
28 81-12,147.

29 **Sec. 2.** Section 81-12,147, Reissue Revised Statutes of Nebraska, is
30 amended to read:

31 81-12,147 (1) Except as provided in subsection (2) of this section,

1 the Department of Economic Development shall use the Site and Building
2 Development Fund to finance loans, grants, subsidies, credit
3 enhancements, and other financial assistance for industrial site and
4 building development and for expenses of the department as appropriated
5 by the Legislature for administering the fund. The following activities
6 are eligible for assistance from the fund:

7 (a) Grants or zero-interest loans to villages, cities, or counties
8 to acquire land, infuse infrastructure, or otherwise make large sites and
9 buildings ready for industrial development;

10 (b) Matching funds for new construction, rehabilitation, or
11 acquisition of land and buildings to assist villages, cities, and
12 counties;

13 (c) Technical assistance, design and finance services, and
14 consultation for villages, cities, and counties for the preparation and
15 creation of industrial-ready sites and buildings;

16 (d) Loan guarantees for eligible projects;

17 (e) Projects making industrial-ready sites and buildings more
18 accessible to business and industry;

19 (f) Infrastructure projects necessary for the development of
20 industrial-ready sites and buildings;

21 (g) Projects that mitigate the economic impact of a closure or
22 downsizing of a private-sector entity by making necessary improvements to
23 buildings and infrastructure;

24 (h) Public and private sector initiatives that will improve the
25 military value of military installations by making necessary improvements
26 to buildings and infrastructure, including, but not limited to, a grant
27 for the establishment of the United States Strategic Command Nuclear
28 Command, Control, and Communications public-private-partnership facility;

29 (i) A grant to a city of the second class that is served by two
30 first-class railroads, that is within fifteen miles of two state borders,
31 and that partners with public power utilities for purposes of expanding

1 electrical system capacities and enhancing redundancy and resilience;

2 (j) A grant of two million dollars to a city of the first class
3 located in the third congressional district if the property previously
4 housed a university or college that is no longer extant and if the
5 improvement and revitalization of the real property is for purposes of
6 supporting the housing, employment, and program needs of youth exiting
7 the foster care system. In addition, the real property may be used for
8 youth exiting juvenile court supervision in an out-of-home placement;

9 (k) Public and private sector initiatives that will improve the
10 value of cities of the second class that have partnered with the United
11 States Department of Defense or its contractors on upgrades to ground-
12 based nuclear deterrence. Such improvements include the construction of
13 electrical, drinking water, and clean water infrastructure; and

14 (l) Identification, evaluation, and development of large commercial
15 and industrial sites and building infrastructure to attract major
16 investment and employment opportunities for advanced manufacturing,
17 processing, trade, technology, aerospace, automotive, clean energy, life
18 science, and other transformational industries in Nebraska by means of
19 the department providing grants to or partnering with political
20 subdivisions, including inland port authorities under the Municipal
21 Inland Port Authority Act, or nonprofit economic development corporations
22 and entering into contracts for consulting, engineering, and development
23 studies to identify, evaluate, and develop large commercial and
24 industrial sites in Nebraska; and -

25 (m) A grant of one hundred thousand dollars to a nonprofit
26 organization for food distribution in a county with a population of more
27 than one hundred thousand and less than three hundred thousand
28 inhabitants as determined by the most recent federal decennial census or
29 the most recent certified count by the United States Bureau of the
30 Census.

31 (2) The Department of Economic Development shall use the subaccount

1 of the Site and Building Development Fund described in subsection (2) of
2 section 81-12,146 to provide financial assistance to any inland port
3 authority created under the Municipal Inland Port Authority Act to help
4 finance large shovel-ready commercial and industrial sites developed
5 under such act.

6 **Sec. 3.** Original sections 81-12,146 and 81-12,147, Reissue Revised
7 Statutes of Nebraska, are repealed.